

Director of the Agency for Personal Data Protection and member of the European Data Protection Board, Zdravko Vukić, participated in the meeting of the European Data Protection Board held on December 12-13, 2023. At the last plenary session of this year, the European Data Protection Board concluded that the application of the General Data Protection Regulation in the first five and a half years has been successful. Although there are a number of important challenges ahead, the European Data Protection Board believes that it is too early to revise the General Data Protection Regulation at this time and calls on co-legislators to quickly adopt a new Regulation establishing additional procedural rules related to the cross-border enforcement of the General Data Protection Regulation. Furthermore, the European Data Protection Board emphasizes that data protection authorities and the European Data Protection Board need sufficient resources to continue carrying out their tasks.

The Chair of the European Data Protection Board, Anu Talus, stated: "The General Data Protection Regulation has strengthened, modernized, and harmonized data protection principles across the EU. The guidelines of the European Data Protection Board have played a key role in informing individuals and businesses about their rights and responsibilities under the General Data Protection Regulation. We will continue to support the implementation of the General Data Protection Regulation, especially in SMEs, and generally raise awareness about the General Data Protection Regulation. Additionally, cooperation among data protection supervisory authorities and the enforcement of the General Data Protection Regulation have gained momentum. The European Data Protection Board is more committed than ever to ensuring effective and consistent enforcement of the General Data Protection Regulation."

The European Data Protection Board has solidified its position as the EU body responsible for ensuring the consistent application of the General Data Protection Regulation. It has built a comprehensive collection of documents with guidelines to promote compliance among data controllers and processors and consistency among data protection supervisory authorities. Furthermore, it has provided a framework for the practical application of compliance tools such as codes of conduct and certification mechanisms, enabling them to become operational in a consistent manner throughout the EU. Moreover, the European Data Protection Board has successfully played its unique role in resolving disputes in cross-border cases, thereby ensuring consistent application of the General Data Protection Regulation.

Regarding enforcement, the European Data Protection Board is convinced that effective and efficient cooperation among data protection authorities leads to a shared culture of data protection. The existing tools in the General Data Protection Regulation have the potential to achieve this goal, provided they are used in a sufficiently harmonized manner. The European Data Protection Board and data protection authorities will continue to invest efforts in further strengthening cooperation in enforcement and achieving more effective and consistent outcomes within the existing legal framework.

Given the importance of simplified national procedural rules, the European Data Protection Board has submitted a "wish list" to the European Commission. The joint opinion of the European Data Protection Board and the European Data Protection Supervisor dated September 19, 2023, on the Proposal for a Regulation establishing additional procedural rules related to the enforcement of the General Data Protection Regulation welcomed the fact that the aim of the proposal is to promote effective enforcement of data protection rules and that it intends to implement many of the proposals contained in the "wish list of the Data Protection Board," and it presented a number of recommendations to ensure the highest possible effectiveness of this forthcoming Regulation.

Furthermore, the European Data Protection Board calls on member states to ensure that all data protection authorities have the necessary resources to effectively carry out their tasks in light of the significant challenges ahead. First and foremost, the constantly evolving technological environment presents new challenges in the field of data protection on a daily basis. New legislation is also being considered or has been introduced to provide additional rules for creating a safer digital space and establishing a level playing field for businesses in the digital economy, such as the Digital Markets Act, the Digital Services Act, the Digital Services Governance Act, or the proposed Artificial Intelligence

Act. This new legislation may impose additional responsibilities on data protection authorities or the European Data Protection Board regarding enforcement and oversight. However, there is a disparity between this increasing workload and the available resources. Additionally, the tasks of the European Data Protection Board and data protection authorities under the General Data Protection Regulation continue to intensify. Furthermore, enhanced cooperation among data protection authorities in enforcement, which in turn leads to greater involvement of the European Data Protection Board, has significantly impacted the workload. Success in carrying out these tasks largely depends on the resources available to data protection authorities and the European Data Protection Board, including through its Secretariat. Therefore, it is crucial to ensure that the EDPB Secretariat has the necessary resources as it plays a key role in preparing and executing many tasks entrusted to the European Data Protection Board.

Regarding international transfers, the European Data Protection Board emphasizes the importance of further developing adequacy decisions with third countries and international organizations and expects the Commission to complete its work on reviewing adequacy decisions made under Directive 95/46/EC. Furthermore, the European Data Protection Board encourages the Commission to continue developing international cooperation and emphasizes the importance of effective cooperation in enforcement with third countries.

During the plenary session, the European Data Protection Board also held a general discussion on the "pay or ok" model. It was decided that a request for a mandate for guidelines on this topic would be prepared.